

CV-26-000780 CHAHAL, NAHAR SINGH vs NEWREZ LLC – Defendant’s Demurrer to Complaint – SUSTAINED, in part, without leave to amend, SUSTAINED, in part, with leave to amend.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Defendants’ Request for Judicial Notice is GRANTED. Based on the papers submitted and the matters subject to judicial notice, the Court finds that Defendant US BANK’s Demurrer to the Complaint is well-taken and should be SUSTAINED in its entirety, without leave to amend. Plaintiff has failed to oppose the arguments made on demurrer by this defendant and has likewise failed to demonstrate how amendment would cure the deficiencies in the pleading. With regard to the arguments on behalf of NEWREZ, LLC, the Court finds as follows: Defendant Newrez, LLC’s Demurrer to the First Cause of Action is SUSTAINED without leave to amend. Plaintiff makes no argument in opposition to Defendant’s showing, by way of judicial notice, that the provisions of Civ. Code § 2923.5 are inapplicable to Newrez, LLC based on the provisions of Civ. Code § 2924.18(b). (Civ. Code § 2923.5(g).) Further, it appears that the only remedy for a violation of Civil Code § 2923.5 is a postponement of the foreclosure sale. Once the sale has taken place, the statute does not provide any relief. (Lueras v. BAC Home Loans Servicing, LP (2013) 221 Cal.App.4th 49, 77; Stebley v. Litton Loan Servicing, LLP (2011) 202 Cal.App.4th 522, 526.) Defendant Newrez, LLC’s Demurrer to the Second, Third, Fourth, and Fifth Causes of Action is SUSTAINED, with leave to amend, as follows: With regard to the Second and Third Causes of Action, the allegations of the Complaint fail for lack of specificity with regard to the Defendant’s purported material violations of Civ. Code §§ 2923.7 and 2924.9, as well as failure to sufficiently allege resultant economic harm as required by Civ. Code § 2924.12(b). With regard to the Fourth Cause of Action for violation of Business & Professions Code § 17200 et seq., the allegations likewise fail based on Plaintiff’s failure to sufficiently allege the statute-based claims in the preceding causes of action. Lastly, with regard to the Fifth Cause of Action for Wrongful Foreclosure, the claim fails because Plaintiff has failed to allege a tender. The Court notes Plaintiff’s argument that the transaction was void, and tender excused, due to Defendant’s violations of the above-referenced Civil Code provisions. However, as noted above, Civ. Code § 2923.5 provides no remedy other than postponement of the foreclosure sale and cannot be asserted post-foreclosure. As for Civ. Code §§ 2923.7 and 2924.9, these give rise to claims for economic damages and statutory penalties post-foreclosure (Civ. Code § 2924.12(b)), not an unwinding of the foreclosure sale, and they say nothing about excuse of tender. Plaintiff shall file his amended pleading within 20 days.

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CV-26-000780 – CHAHAL, NAHAR SINGH vs NEWREZ LLC – Defendant’s Demurrer to Complaint – SUSTAINED, in part, without leave to amend, SUSTAINED, in part, with leave to amend.

Defendants’ Request for Judicial Notice is GRANTED.

Based on the papers submitted and the matters subject to judicial notice, the Court finds that Defendant US BANK’s Demurrer to the Complaint is well-taken and should be SUSTAINED in its entirety, without leave to amend. Plaintiff has failed to oppose the arguments made on demurrer by this defendant and has likewise failed to demonstrate how amendment would cure the deficiencies in the pleading.

With regard to the arguments on behalf of NEWREZ, LLC, the Court finds as follows:

Defendant Newrez, LLC’s Demurrer to the First Cause of Action is SUSTAINED without leave to amend. Plaintiff makes no argument in opposition to Defendant’s showing, by way of judicial notice, that the provisions of Civ. Code § 2923.5 are inapplicable to Newrez, LLC based on the provisions of Civ. Code § 2924.18(b). (Civ. Code § 2923.5(g).)

Further, it appears that the only remedy for a violation of Civil Code § 2923.5 is a postponement of the foreclosure sale. Once the sale has taken place, the statute does not provide any relief. (*Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 77; *Stebley v. Litton Loan Servicing, LLP* (2011) 202 Cal.App.4th 522, 526.)

Defendant Newrez, LLC's Demurrer to the Second, Third, Fourth, and Fifth Causes of Action is SUSTAINED, with leave to amend, as follows:

With regard to the Second and Third Causes of Action, the allegations of the Complaint fail for lack of specificity with regard to the Defendant's purported material violations of Civ. Code §§ 2923.7 and 2924.9, as well as failure to sufficiently allege resultant economic harm as required by Civ. Code § 2924.12(b).

With regard to the Fourth Cause of Action for violation of Business & Professions Code § 17200 et seq., the allegations likewise fail based on Plaintiff's failure to sufficiently allege the statute-based claims in the preceding causes of action.

Lastly, with regard to the Fifth Cause of Action for Wrongful Foreclosure, the claim fails because Plaintiff has failed to allege a tender. The Court notes Plaintiff's argument that the transaction was void, and tender excused, due to Defendant's violations of the above-referenced Civil Code provisions. However, as noted above, Civ. Code § 2923.5 provides no remedy other than postponement of the foreclosure sale and cannot be asserted post-foreclosure. As for Civ. Code §§ 2923.7 and 2924.9, these give rise to claims for economic damages and statutory penalties post-foreclosure (Civ. Code § 2924.12(b)), not an unwinding of the foreclosure sale, and they say nothing about excuse of tender.

Plaintiff shall file his amended pleading within 20 days.